

Smt. Savitri Devi v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 8 February 2023 · WRIT - C No. - 29079 of 2022 · **Writ disposed of; petitioner relegated to clauses 6.5 and 6.14.**

HEADNOTE

Where the only reliefs pressed in a writ were correction of electricity bills and receipt of dues in easy instalments, the Allahabad High Court held that both remedies lie under Paragraphs 6.5 and 6.14 of the U.P. Electricity Supply Code, 2005. Without expressing any opinion on merits, it disposed of the petition with liberty to apply under those provisions, directing the licensee to decide any such application in accordance with law after hearing, preferably within four weeks.

FACTUAL SUMMARY

Smt. Savitri Devi invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and the distribution licensee (respondent no. 2). At the hearing her counsel pressed only two reliefs: a direction to respondent no. 2 to correct her electricity bills, and a direction that payment of those bills be received in easy instalments. Counsel for the State and for the licensee were heard. The order records no further facts of the billing dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill correction — alternate remedy

HOLDING

A writ seeking correction of electricity bills is not decided on merits; the consumer's remedy is under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005, and the licensee must decide any application under that provision in accordance with law after hearing, preferably within four weeks of submission with a certified copy of the order. ¶ 1

HOLDING-UNIT · UP-2005::6.14

instalment facility — alternate remedy

HOLDING

A writ seeking that electricity dues be received in easy instalments is to be pursued under Paragraph 6.14 of the U.P. Electricity Supply Code, 2005; the Court expressed no opinion on merits and directed the licensee to decide any such application in accordance with law after hearing, preferably within four weeks. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court treated Paragraph 6.5 as the statutory alternative to a writ for bill correction and disposed of the petition with liberty to apply under that clause. ¶ 1

bill-correction-clause-6.5 The only billing relief pressed was correction of electricity bills; that claim was remitted to Paragraph 6.5. ¶ 1

installment-payment-clause-6.14 The prayer for easy instalments was remitted to Paragraph 6.14 rather than granted or refused in the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S ELECTRICITY BILLS REQUIRED CORRECTION

Court expressly declined to express any opinion on merits. ¶ 1

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.